

24STCV29119 24STCV29119

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Case Number: 24STCV29119 Hearing Date: August 12, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/12/2026

CASE NUMBER: 24STCV29119

CASE NAME: Jacobo, et al. v. FCA US, LLC, et al.

MOVING PARTY: Defendant FCA US, LLC

OPPOSING PARTY: Unopposed (Plaintiffs Gregorio Jacobo, Kevin Jacobo)

PROCEEDING: MOTION FOR SUMMARY

ADJUDICATION

RULING SUMMARY: The motion for summary adjudication as to the First, Second, Third, and Fourth Causes of Action is granted.

Background

This is

a lemon law action. Plaintiffs Gregorio Jacobo and Kevin Jacobo (Plaintiffs) filed their complaint on November 5, 2024, asserting four statutory claims and one claim for fraudulent inducement against moving defendant FCA US LLC (FCA). Plaintiffs also pleaded one cause of action for negligent repair against defendant Bravo Chrysler Dodge Jeep Ram of Alhambra (Bravo).

Bravo

filed its answer on December 11, 2024. FCA filed its answer on January 8, 2025.

On May

8, 2026, FCA filed a motion for summary adjudication of Plaintiff's first, second, third, and fourth causes of action, all of which alleged violations of the Song Beverly Act. FCA timely served Plaintiff with its motion by electronic mail on May 8, 2026. Plaintiff filed no opposition, and FCA no reply.

I. Legal Standard

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal. 4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) Summary adjudication may be granted as to one or more causes of action within an action, or one or more claims for damages. (Code Civ. Proc., § 437c(f).)~~~~~

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A defendant moving for summary judgment bears two burdens:

(1) the burden of production – presenting admissible evidence, through material facts, sufficient to satisfy a directed verdict standard; and (2) the burden of persuasion – the material facts presented must persuade the court that the plaintiff cannot establish one or more elements of a cause of action, or a complete defense vitiates the cause of action. (Code Civ. Proc., § 437c(p)(2); Aguilar, *supra*, 25 Cal.4th at pp. 850-851.) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (Id.)~~~~~

## II. Discussion

Defendant carries its burden as a threshold matter. Plaintiffs raise no triable issue. The motion is granted.

The following facts are undisputed: Plaintiffs presented the Vehicle for routine maintenance on October 4, 2023, January 18, 2024, and July 3, 2024, without identifying the engine defect raised in Plaintiffs' complaint. (DSMF 5-7.) From 2023 to 2025, the Vehicle was only out of service for a total of 11 days for repairs. (DSMF 23.) Plaintiff only identified the engine defects underlying their complaint at a repair visit on October 21, 2024. (DSMF 10; D. Exh. K.) FCA's authorized repair facility (Bravo) was unable to replicate or verify Plaintiff's complaints in October 2024 in order to perform engine repairs. (DSMF 11; D. Exh. K.) Plaintiffs presented the Vehicle for routine repairs again in February 2025 and December 2025 and did not continue to request repairs for the engine defects alleged in Plaintiffs' complaint. (D. Exh. L-M.)

FCA carries its threshold burden to show Plaintiffs did not present the Vehicle for repair a reasonable number of times before filing suit. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1207 [at least two repair attempts required].) Plaintiff raises no triable issue in opposition. Plaintiff's first cause of action fails. (Civ. Code, § 1791.1; *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101 [elements].)

FCA carries its threshold burden to show the Vehicle was not out of service for more than 30 days during the relevant period. Plaintiff raises no triable issue in opposition. Plaintiff's second cause of action fails. (Civ. Code, § 1793.2(b).)

FCA carries its threshold burden to show that it provided Bravo with sufficient literature and parts to complete all repairs to the Subject Vehicle that could be identified. Plaintiff raises no triable issue in opposition. Plaintiff's third cause of action fails. (Civ. Code, § 1793.2(a)(3).)

FCA carries its threshold burden to show it successfully performed all repairs required under the express and

implied warranty. Plaintiff raises no triable issue otherwise. Plaintiff's fourth cause of action fails. (Civ. Code, §§ 1791.1, 1794, 1795.5.)

Conclusion

Defendant FCA US, LLC's Motion for Summary Adjudication of the first, second, third and fourth causes of action is granted.

Date: August  
12, 2026 \_\_\_\_\_

William  
E. Weinberger

Judge,  
Los Angeles Superior Court